

Defendant asked for identification of specific information, to which Plaintiff responded generally and referred to a prior Interrogatory Response. Plaintiff must provide more specific, stand-alone answers. Defendant did not address this Interrogatory in the Reply Separate Statement.

Special Interrogatory No. 29

Defendant asked for identification of specific information, to which Plaintiff responded generally. The Court will compel Plaintiff to specifically identify documents and sources of information, instead of the general references to “discovery in the related family law matter.”

Special Interrogatory No. 33

Defendant sought specific dates and Plaintiff provided months. Plaintiff’s amended response appears to provide the requisite specificity. Defendant did not address this Interrogatory in the Reply Separate Statement.

Sanctions

Defendant also seeks sanctions in the amount of \$2,910.00. Plaintiff has amended responses and claims that renders the motion moot, and on that basis believes the request for sanctions should be denied. California Rule of Court 3.1348(a) provides: “The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though . . . the requested discovery was provided to the moving party after the motion was filed.” Sanctions here are appropriate. Counsel’s explanation for waiting until one week before the hearing to amend responses is not satisfying. It not only makes the moving party do extra work, it places an extra burden upon the Court (both the judge and staff). These were not substantial amendments and they did not require six months of wait. The Court will grant the request for sanctions payable to counsel for Defendant within 30 days of this order.

3. 9:00 AM CASE NUMBER: C24-02709
CASE NAME: MARIA SEREDKINA VS. PAVEL YEFENAU
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO FORM INTERROGATORIES**
FILED BY: YEFENAU, PAVEL
TENTATIVE RULING:

Defendant Pavel Yefenau brings this Motion to Compel Further Responses to Form Interrogatories served on Plaintiff Maria Seredkina. Plaintiff Seredkina filed a brief opposition.

Background

Pursuant to the declaration from Defendant—facts to which Plaintiff explicitly concedes—Plaintiff served responses to Form Interrogatories (after stipulated extensions) on August 28, 2025, with verifications on August 29, 2025. Defendant began the meet and confer process on September 23, 2025, and although Plaintiff promised amended responses, none were served before Defendant’s

deadline for this motion. Apparently one day prior to filing the opposition, and five and a half months after this Motion was filed, Plaintiff finally served amended discovery responses. Plaintiff acknowledges that the initial responses were deficient, but opposes the Motion on two grounds: (1) Defendant's Separate Statement is purportedly procedurally deficient; and (2) three of the responses are Code Compliant.

Analysis

Format of Separate Statement

The Court does not agree that the failure to provide definitions to Form Interrogatory terminology violates California Rule of Court 3.1356(c). Nor does the Court find, in this particular circumstance, that Defendant's efforts to combine the discussion of twelve Form Interrogatories violates the rules, given the particulars of these responses. Finally, the Court will not ignore this motion simply because the Requests for Admission were in a footnote.

Form Interrogatory Nos. 2.4, 6.3, 6.6, 8.5, 8.6, 8.7, 9.1, 10.1, 10.2, 12.1, 12.2, 12.3, 12.4

As Defendant acknowledges, Plaintiff has now provided her substantive responses.

Form Interrogatory No. 17.1 – RFA No. 22

Plaintiff's response appears to be code compliant. Defendant's complaints appear to be with Plaintiff's answer to the Request for Admission, which is not before the Court at this time.

Form Interrogatory No. 17.1 – RFA No. 24

Defendant asked Plaintiff to admit "that a spouse has a right to know of the extramarital affairs of his or her spouse." She declines to respond substantively because the request "encompasses 'moral obligations.'" Requests for Admission may properly be addressed as to fact, law, or opinions. (*See, e.g., Chodos v. Sup. Ct (Lowe)* (1963) 215 Cal.App.2d 318, 321.) It is certainly true, however, that Plaintiff will be unable to provide responses to (c) and (d), so while the Request for Admission may be permissible, it is unlikely that this *Interrogatory* is necessary or proper. The Court declines to order further response. Defendant's complaints appear to be with Plaintiff's answer to the Request for Admission, which is not before the Court at this time.

Form Interrogatory No. 17.1 – RFA No. 25

Defendant requested that Plaintiff admit that she "misle[d] Yefanau when denying that [she was] having an extramarital affair after [her] affair with MASCHMEIER had begun." Plaintiff argues that the definition of "mislead" requires knowledge of what was in Plaintiff's mind. The Court disagrees. She also argues that this request is compound. Although it assumes certain predicate facts, that does not render it incapable of a yes or no answer. Again, however, while the Request for Admission may be permissible, it is unlikely that she will be able to provide responses to (c) or (d). She must, however, supplement (b).

Sanctions

Defendant also seeks sanctions in the amount of \$3,385.00. Plaintiff has amended responses and

claims that renders the motion moot, and on that basis believes the request for sanctions should be denied. California Rule of Court 3.1348(a) provides: “The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though . . . the requested discovery was provided to the moving party after the motion was filed.” Sanctions here are appropriate. Counsel’s explanation for waiting until one week before the hearing to amend responses is not satisfying. It not only makes the moving party do extra work, it places an extra burden upon the Court (both the judge and staff). These were not substantial amendments and they did not require six months of wait. The Court will grant the request for sanctions payable to counsel for Defendant within 30 days of this order.

4. 9:00 AM CASE NUMBER: C24-02709

CASE NAME: MARIA SEREDKINA VS. PAVEL YEFENAU

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSE AND PRODUCTION IN
RESPONSE TO REQUEST FOR PRODUCTION OF DOCUMENTS**

FILED BY: YEFENAU, PAVEL

TENTATIVE RULING:

Defendant Pavel Yefenau brings this Motion to Compel Further Responses to Special Interrogatories served on Plaintiff Maria Seredkina. The Court received no timely opposition

Background

Pursuant to the declaration from Defendant Plaintiff served responses to Requests for Production of Documents (after stipulated extensions) on August 28, 2025, with verifications on August 29, 2025. Defendant began the meet and confer process on September 23, 2025, and although Plaintiff promised amended responses, Plaintiff did not fully address or amend responses to Requests 3 and 4. Defendant seeks further responses to these two requests. Apparently one day prior to filing the opposition, and five and a half months after this Motion was filed, Plaintiff finally served amended discovery responses. Plaintiff acknowledges that the initial responses were deficient, but opposes the Motion on two grounds: (1) Defendant’s Separate Statement is purportedly procedurally deficient; and (2) three of the responses are Code Compliant.

Analysis

Request for Production of Documents No. 3

Defendant sought documents relating to Stuart Maschmeier that Defendant is believed to have accessed. Plaintiff responded by identifying the categories of documents but stating that all the material was deleted. Plaintiff has amended her response to comply with the Code and it appears satisfactory at this time.

Request for Production of Documents No. 4

Defendant sought documents relating to Plaintiff’s employer Zeiss that Defendant is believed to have accessed. Plaintiff responded that the request was overbroad and implicated confidential and